

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK=====X
ELSIE ROSA and ELSIE ORTIZ,

Plaintiffs,

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
Police Officer VINCENT PINTO (Shield #03290),
Police Officer MARK NICOLETTI (Shield #21538),
Police Officer "JOHN DOE 1" and
Police Officer "JOHN DOE 2,"Defendants.
=====X

Index No.:

Date Filed:

Plaintiff designates
New York County as
Place of Venue
Based upon
Location of Occurrence**SUMMONS**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 22, 2013**Defendant(s):****CITY OF NEW YORK**
100 Church Street
New York, NY 10007**NEW YORK CITY POLICE DEPARTMENT**
1 Police Plaza
New York, NY 10038**Police Officer VINCENT PINTO (Shield #03290)**
1 Police Plaza
New York, NY 10038

Police Officer MARK NICOLETTI (Shield #21538)
1 Police Plaza
New York, NY 10038

Police Officer "JOHN DOE 1"
1 Police Plaza
New York, NY 10038

Police Officer "JOHN DOE 2"
1 Police Plaza
New York, NY 10038

Yours etc.,

The Law Offices of
ANTHONY IADEVAIA
Attorneys for Plaintiffs
1932 Second Avenue
New York, NY 10029
(212) 996-8700

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
ELSIE ROSA and ELSIE ORTIZ,

Index No.:

Plaintiffs,

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
Police Officer VINCENT PINTO (Shield #03290),
Police Officer MARK NICOLETTI (Shield #21538),
Police Officer "JOHN DOE 1" and
Police Officer "JOHN DOE 2,"

Defendant(s).

=====X

Plaintiffs, **ELSIE ROSA and ELSIE ORTIZ**, by their attorneys, THE LAW OFFICES
OF ANTHONY IADEVAIA, complaining of the Defendants, respectfully allege the following
upon information and belief:

FIRST CAUSE OF ACTION ON BEHALF OF ELSIE ROSA

1. That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK,
was and still is a municipal corporation created pursuant to the laws of the State of New York.
2. That at all times hereinafter mentioned, Defendant, NEW YORK CITY
POLICE DEPARTMENT, was and still is an agency within the control of the City of New York.
3. That on March 28, 2012, Plaintiffs served a Notice of Claim upon CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT within ninety (90) days after the
causes of action herein accrued.
4. That a hearing was held by the CITY OF NEW YORK and NEW YORK CITY

POLICE DEPARTMENT, in accordance with the General Municipal Law, on May 9, 2012.

5. That this action is commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

6. That at least thirty (30) days have elapsed since the aforesaid Notice of Claim was served upon the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and that the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have neglected and/or refused to make adjustments or payment in response thereto.

7. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, employed Defendant VINCENT PINTO as a police officer.

8. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, employed Defendant MARK NICOLETTI as a police officer.

9. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, employed Defendant "JOHN DOE 1" as a police officer.

10. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, employed Defendant "JOHN DOE 2" as a police officer.

11. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, trained, managed and supervised Defendant

Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and "JOHN DOE 2."

12. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, instituted protocol and procedures for placing persons under the custody and control of the NEW YORK CITY POLICE DEPARTMENT.

13. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, instituted protocol and procedures for handcuffing individuals by New York City police officers.

14. That on or about December 31, 2011, New York City Police Officers, Defendants Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," attempted to place Plaintiff, ELSIE ROSA, under arrest within her own residence located at 235 East 96th Street, Apt. 3A, New York, New York.

15. That on or about December 31, 2011, Defendants, Police Officer Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," handcuffed and arrested Plaintiff ELSIE ROSA without proper cause, reason or suspicion and in violation of existing rules, regulations and protocol of the NEW YORK CITY POLICE DEPARTMENT.

16. That on or about December 31, 2011, Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," utilized excessive, unnecessary and brutal force in order to unlawfully arrest Plaintiff ELSIE ROSA.

17. That on or about December 31, 2011, Police Officers VINCENT PINTO, MARK

NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," utilized excessive, unnecessary and brutal force in order to unlawfully arrest Plaintiff ELSIE ROSA by grabbing her neck, throwing her to the floor, twisting her limbs, striking her face and body with their hands and/or weapons and spraying mace in and/or about her face.

18. That as a result of the aforesaid utilization of excessive, unnecessary and brutal force, Plaintiff ELSIE ROSA, was caused to suffer numerous injuries including severe bruising and psychological trauma requiring counseling.

19. That the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent, careless and reckless in the hiring, training, and supervising of their employees, servants, agents including but not limited to Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2" causing Plaintiff, ELSIE ROSA, to sustain the severe, serious and permanent injuries as herein alleged.

20. That the occurrence and the injuries sustained by the Plaintiff, ELSIE ROSA, were caused by the negligence of the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," without any negligence on the part of the Plaintiff contributing thereto.

21. That by reason of the recklessness and carelessness of the Defendants, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE

2,” Plaintiff ELSIE ROSA became sick, depressed and disabled; received serious, permanent and severe psychological, mental and physical injuries from which she continues to suffer; and has been informed that and verily believes that said injuries are of a permanent nature and that she will be permanently incapacitated.

SECOND CAUSE OF ACTION ON BEHALF OF ELSIE ROSA

22. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs “1” through “21”, inclusive, as if hereinafter set forth at length.

23. That at all times hereinafter mentioned, Defendants, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, “JOHN DOE 1” and/or “JOHN DOE 2,” while acting in their official capacity as police officers, wrongly and improperly created and/or filed false information regarding Plaintiff that resulted in her wrongful arrest and detention commencing on or about December 31, 2011 and continuing through on or about January 2, 2012.

24. That at all times hereinafter mentioned, Defendants, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, “JOHN DOE 1” and/or “JOHN DOE 2,” while acting in their official capacity as a police officers, wrongly, improperly and without provocation, beat and assaulted Plaintiff ELSIE ROSA, which resulted in her requiring hospitalization and other medical treatment for personal injuries.

25. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK, CITY OF NEW YORK POLICE DEPARTMENT, New York City Police Officers VINCENT

PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," allowed and permitted false and unfounded criminal charges to be brought and filed against Plaintiff ELSIE ROSA in the Criminal Court of the City of New York and Supreme Court of the State of New York.

26. That as a result of the negligence, carelessness and recklessness and/or intentional conduct of the Defendants, CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, their agents, servants, employees and/or contractees, including but not limited to Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," Plaintiff ELSIE ROSA, was wrongly criminally charged, detained and prosecuted.

27. That all criminal charges have been dismissed against Plaintiff ELSIE ROSA.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF ELSIE ROSA

28. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "27", inclusive, as if hereinafter set forth at length.

29. That on or about December 31, 2011 and continuing thereafter, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," subjected Plaintiff, ELSIE ROSA to deprivation of her rights, privileges and immunities secured under the Constitution of the United States pursuant to 42 U.S.C. Section 1983.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF ELSIE ROSA

30. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "29", inclusive , as if hereinafter set forth at length.

31. That on or about December 31, 2011 and continuing thereafter, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," subjected Plaintiff, ELSIE ROSA to deprivation of her rights, privileges and immunities secured under the Constitution of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF ELSIE ORTIZ

32. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "31", inclusive , as if hereinafter set forth at length.

33. That on or about December 31, 2011, New York City Police Officers, VINCENT PINTO and MARK NICOLETTI attempted to place Plaintiff, ELSIE ORTIZ, under arrest within her own residence located at 235 East 96th Street, Apt. 3A, New York, New York.

34. That on or about December 31, 2011, Police Officers, Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," handcuffed and arrested Plaintiff, ELSIE ORTIZ without proper cause, reason or suspicion and in violation of existing rules, regulations and protocol of the NEW YORK CITY POLICE DEPARTMENT.

35. That on or about December 31, 2011, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," utilized excessive,

unnecessary and brutal force in order to arrest Plaintiff, ELSIE ORTIZ.

36. That on or about December 31, 2011, New York City Police Officers Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," utilized excessive, unnecessary and brutal force in order to unlawfully arrest Plaintiff, ELSIE ORTIZ by twisting her limbs and spraying mace in and/or about her face.

37. That as a result of the aforesaid utilization of excessive, unnecessary and brutal force, Plaintiff, ELSIE ORTIZ, was caused to suffer numerous injuries including bruising and psychological trauma requiring counseling.

38. That the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent, careless and reckless in the hiring, training, and supervising of their employees, servants, agents including by not limited to New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," causing Plaintiff, ELSIE ORTIZ, to sustain the severe, serious and permanent injuries as herein alleged.

39. That the occurrence and the injuries sustained by the Plaintiff, ELSIE ORTIZ, were caused by the negligence of the Defendants, CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," without any negligence on the part of the Plaintiff contributing thereto.

40. That by reason of the recklessness and carelessness of the Defendants,

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," 2," Plaintiff ELSIE ORTIZ became sick, depressed and disabled; received serious, permanent and severe psychological, mental and physical injuries from which she continues to suffer; and has been informed that and verily believes that said injuries are of a permanent nature and that she will be permanently incapacitated.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF ELSIE ORTIZ

41. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "40," inclusive, as if hereinafter set forth at length.

42. That at all times hereinafter mentioned, Defendants, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," while acting in their official capacity as police officers, wrongly and improperly created and/or filed false information regarding Plaintiff ELSIE ORTIZ that resulted in her wrongful arrest and detention commencing on or about December 31, 2011 and continuing through on or about January 2, 2012.

43. That at all times hereinafter mentioned, Defendants, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," while acting in their official capacity as a police officers, wrongly, improperly and without provocation, beat and assaulted Plaintiff ELSIE ORTIZ that resulted in her requiring medical treatment for personal injuries.

44. That at all times hereinafter mentioned, Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," allowed and permitted false and unfounded criminal charges to be brought and filed against Plaintiff ELSIE ORTIZ in the Criminal Court of the City of New York and Supreme Court of the State of New York.

45. That as a result of the negligence, carelessness and recklessness and/or intentional conduct of the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants, employees and/or contractees, including but not limited to Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," Plaintiff ELSIE ORTIZ, was wrongly criminally charged, detained and prosecuted.

46. That all criminal charges have been dismissed against Plaintiff ELSIE ORTIZ.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF ELSIE ORTIZ

47. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "46", inclusive, as if hereinafter set forth at length.

48. That on or about December 31, 2011 and continuing thereafter, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," subjected Plaintiff, ELSIE ORTIZ to deprivation of her rights, privileges and immunities secured under the Constitution of the United States pursuant to 42 U.S.C. Section 1983.

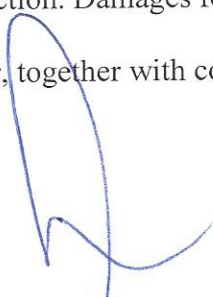
AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF ELSIE ORTIZ

49. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "48", inclusive, as if hereinafter set forth at length.

50. That on or about December 31, 2011 and continuing thereafter, Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, New York City Police Officers VINCENT PINTO, MARK NICOLETTI, "JOHN DOE 1" and/or "JOHN DOE 2," subjected Plaintiff, ELSIE ORTIZ to deprivation of her rights, privileges and immunities secured under the Constitution of the State of New York.

WHEREFORE, Plaintiffs ELSIE ROSA and ELSIE ORTIZ demand judgment against the above-named Defendants in their respective causes of action each numbered FIRST, SECOND, THIRD and FOURTH. Said damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction. Damages for the Plaintiffs are sought in an amount to be determined upon trial of this matter, together with costs and disbursements.

Dated: New York, New York
January 22, 2013



ANTHONY IADEVAIA

The Law Offices of
ANTHONY IADEVAIA
Attorneys for Plaintiffs
ELSIE ROSA and ELSIE ORTIZ
1932 Second Avenue
New York, NY 10029
(212) 996-8700

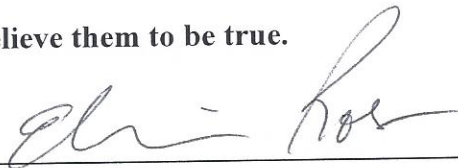
VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

ELSIE ROSA, being duly sworn, deposes and says:

1. I am the Plaintiff in the foregoing action.

2. I have read the foregoing COMPLAINT and know the contents thereof. It is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



ELSIE ROSA

Sworn to before me this
22nd day of January, 2013.



NOTARY PUBLIC

SUSAN DAVIS
Notary Public, State of New York
No. 02DA4995369
Qualified in New York County
Commission Expires April 20, 2014

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

ELSIE ORTIZ, being duly sworn, deposes and says:

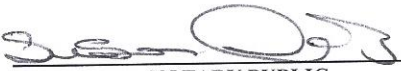
1. I am the Plaintiff in the foregoing action.

2. I have read the foregoing COMPLAINT and know the contents thereof. It is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



ELSIE ORTIZ

Sworn to before me this
22nd. day of January, 2013.



NOTARY PUBLIC

SUSAN DAVIS
Notary Public, State of New York
No. 02DA4995369
Qualified in New York County
Commission Expires April 20, 2014

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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- against -

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Police Officer MARK NICOLETTI (Shield #21538),
Police Officer "JOHN DOE 1" and
Police Officer "JOHN DOE 2,"

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

THE LAW OFFICES OF ANTHONY IADEVAIA

Attorneys for Plaintiff(s)

1932 Second Avenue
New York, New York 10029
(212) 996-8700

To:

Service of a copy of the within
is hereby admitted.

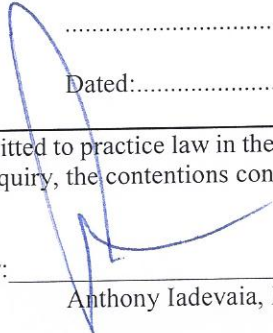
Attorney for

.....

Dated:.....201..

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice law in the court of the State of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 23, 2013

By: 

Anthony Iadevaia, Esq.